

MASTER CLOUD HOSTING AGREEMENT

between

Vantage Cloud Systems Inc. (“Vendor”)

and

Harlow Fitness Holdings, Inc. (“Customer”)

This Master Cloud Hosting Agreement (this “Agreement”) is entered into and effective as of September 1, 2023 (the “Effective Date”) by and between Vantage Cloud Systems Inc., a Delaware corporation with its principal place of business at 400 Market Street, Wilmington, Delaware 19801 (“Vendor”), and Harlow Fitness Holdings, Inc., a Delaware corporation with its principal place of business at 88 Commerce Way, Austin, Texas 78701 (“Customer”), each a “Party” and together the “Parties.”

RECITALS. Vendor operates a cloud infrastructure platform used to host web applications, and Customer wishes to host its member-facing fitness applications on that platform on the terms below.

1. TERM AND RENEWAL

1.1 Initial Term. This Agreement commences on the Effective Date and continues for an initial term of three (3) years, expiring on August 31, 2026 (the “Initial Term”), unless terminated earlier under Section 9.

1.2 Renewal. This Agreement does not renew automatically. At least sixty (60) days before the end of the Initial Term, the Parties shall discuss in good faith whether to enter into a new term on mutually agreed terms; absent a signed renewal, this Agreement expires at the end of the Initial Term.

2. SERVICES; MINIMUM COMMITMENT

2.1 Vendor shall provide cloud hosting, storage, and infrastructure-monitoring services as described in the applicable order form (the “Services”).

2.2 Minimum Commitment. Customer commits to a minimum of two hundred (200) active user seats for each year of the Term, billed whether or not actually used (the “Minimum Commitment”).

3. FEES AND PAYMENT

3.1 Fees. Customer shall pay Vendor an annual subscription fee of one hundred twenty thousand dollars (\$120,000), invoiced annually in advance. The aggregate value of this Agreement over the three (3)-year Initial Term is three hundred sixty thousand dollars (\$360,000).

3.2 Payment Terms. Customer shall pay each undisputed invoice within thirty (30) days of the invoice date.

3.3 Pricing Model. The Services are provided on a subscription basis, priced per active user seat.

3.4 Price Escalation. At each renewal, the annual subscription fee may increase by up to the percentage increase in the U.S. Consumer Price Index (CPI-U) over the preceding twelve (12) months, capped at four percent (4%) per year.

4. SERVICE LEVELS

4.1 Vendor shall use commercially reasonable efforts to achieve monthly Service uptime of at least 99.5%, measured as described in the order form.

4.2 If actual monthly uptime falls below 99.5%, Customer shall receive a service credit against the next invoice equal to 5% of that month's fees for each full percentage point of shortfall, up to a maximum of 20% of that month's fees.

Monthly uptime achieved	Service credit
99.0% - 99.49%	5% of that month's fees
95.0% - 98.99%	10% of that month's fees
Below 95.0%	20% of that month's fees

5. DATA RESIDENCY AND SECURITY

5.1 Data Residency. All Customer data shall be stored and processed exclusively within data centers located in the United States. Vendor shall not replicate or process Customer data outside the United States without Customer's prior written consent.

6. LIMITATION OF LIABILITY

6.1 Except for liabilities arising from a Party's breach of confidentiality or indemnification obligations, each Party's total aggregate liability arising out of this Agreement shall not exceed five hundred thousand dollars (\$500,000).

6.2 Neither Party shall be liable for indirect, special, or consequential damages.

7. INDEMNIFICATION

7.1 Vendor shall defend, indemnify, and hold harmless Customer from third-party claims arising out of (a) Vendor's breach of this Agreement, or (b) infringement of a third party's intellectual property rights by the Services.

8. INSURANCE

8.1 Throughout the Term, Vendor shall maintain Commercial General Liability insurance of not less than \$1,000,000 per occurrence, Professional Liability insurance of not less than \$1,000,000 per claim, and Cyber Liability insurance of not less than \$3,000,000 per occurrence.

9. TERMINATION

9.1 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party commits a material breach and fails to cure it within thirty (30) days of notice.

9.2 Termination for Convenience. Either Party may terminate this Agreement for convenience by giving the other Party not less than ninety (90) days' prior written notice.

10. CHANGE OF CONTROL; ASSIGNMENT

10.1 Neither Party may assign this Agreement without the other Party's prior written consent, except in connection with a merger, acquisition, or sale of substantially all of its assets.

10.2 If a Party undergoes a Change of Control involving a direct competitor of the other Party, the other Party may terminate this Agreement on thirty (30) days' written notice given within ninety (90) days of

becoming aware of the Change of Control.

11. GOVERNING LAW

11.1 This Agreement is governed by, and shall be construed in accordance with, the laws of the State of Delaware, without regard to its conflict-of-laws principles. The state and federal courts located in Delaware shall have exclusive jurisdiction over any dispute arising out of this Agreement.

12. GENERAL PROVISIONS

12.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter.

12.2 Notices. All notices shall be in writing and delivered to the addresses set out above.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

For and on behalf of
VANTAGE CLOUD SYSTEMS INC.

Signature: _____

Name: Rachel Kim

Title: VP, Customer Success

Date: September 1, 2023

For and on behalf of
HARLOW FITNESS HOLDINGS, INC.

Signature: _____

Name: Marcus Dell

Title: Chief Operating Officer

Date: September 1, 2023